

The Factory Act, 1948

Definition

(m) “factory” means any premises including the precincts thereof—

(i) whereon ten or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on with the aid of power, or is ordinarily so carried on, or

(ii) whereon twenty or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on without the aid of power, or is ordinarily so carried on,— but does not include a mine subject to the operation of 5[the Mines Act, 1952 (35 of 1952)], or 6[a mobile mobile unit belonging to the armed forces of the Union, railway running shed or a hotel, restaurant or eating place].

6. Approval, licensing and registration of factories.—(1) The State Government may make rules—
6[(a) requiring, for the purposes of this Act, the submission of plans of any class or description of factories to the Chief Inspector or the State Government;]

7[(aa)] requiring, the previous permission in writing of the State Government or the Chief Inspector to be obtained for the site on which the factory is to be situated and for the construction or extension of any factory or class or description of factories;

(b) requiring for the purpose of considering applications for such permission the submission of plans and specifications;

(c) prescribing the nature of such plans and specifications and by whom they shall be certified;

(d) requiring the registration and licensing of factories or any class or description of factories, and prescribing the fees payable for such registration and licensing and for the renewal of licences;

(e) requiring that no licence shall be granted or renewed unless the notice specified in section 7 has been given.

(2) If on an application for permission referred to in 8[clause (aa)] of sub-section (1) accompanied by the plans and specifications required by the rules made under clause (b) of that sub-section, sent to the State Government or Chief Inspector by registered post, no order is communicated to the applicant within three months from the date on which it is so sent, the permission applied for in the said application shall be deemed to have been granted.

(3) Where a State Government or a Chief Inspector refuses to grant permission to the site, construction or extension of a factory or to the registration and licensing of a factory, the applicant may within thirty days of the date of such refusal appeal to the Central Government if the decision appealed from was of the State Government and to the State Government in any other case.

Explanation.—A factory shall not be deemed to be extended within the meaning of this section by reason only of the replacement of any plant or machinery, or within such limits as may be prescribed, of the addition of any plant or machinery 1[if such replacement or addition does not reduce the minimum clear space required for safe working around the plant or machinery or adversely affect the environmental conditions from the evolution or emission of steam, heat or dust or fumes injurious to health].

The Punjab Shops and Commercial Establishments Act, 1958

Definition

(iv) 'Commercial Establishment' means any premises wherein any business, trade or profession is carried on for profit, and includes journalistic or printing establishments and premises in which business of banking, insurance, stocks and shares, brokerage or produce exchange is carried on or which is used as hotel, restaurant, boarding or eating house, theatre, cinema or other place of public entertainment or any other place which the Government may declare, by notification in the official Gazette, to be a commercial establishment for the purposes of this Act;

(Viii) "Establishment" means a shop or a commercial establishment;

(XXV) 'Shop' means a any premises where any trade or business is carried on or where services are rendered to customers and includes office store-rooms, godowns, [sale-depots or ware-houses,] [Substituted for the words "godowns or warehouses" by Punjab Act No. 1 of 1964, Section 2] whether in the same premises or otherwise used in connection with such trade or business but does not include a commercial establishment or a shop attached to a factory where the persons employed in the shop are allowed the benefits provided for workers under the Factories Act, 1948 (LXIII of 1948)..

Section 13. Registration of Establishments. - (1) Within the period specified, in sub-section (3), the employer of every establishment shall send to the prescribed authority concerned a statement in the prescribed form containing: -

(a) the name of the employer and the manager, if any;

(b) postal address of the establishment;

(c) the name, if any; of the establishment;

(d) number of persons employed;

(e) such other particulars as may be prescribed.

(2) (i) On receipt of the statement, the authority shall on being satisfied about the correctness of the statement, register the establishment in the register of establishments in such a manner as may be prescribed and shall issue in a prescribed form a registration certificate to the employer. The registration certificate shall on demand by the inspector, be shown to him by the employer.

(ii) The registration certificate shall be renewable by the 31st. March, every year. Thirty days grace time shall, however, be allowed for the renewal of the certificate.

(3) Within thirty days from the date mentioned in column 2 below in respect of the establishment in column 1 the statement shall be sent to the prescribed authority under sub-section (1).

(4) It shall be the duty of the employer to notify to the prescribed authority in the prescribed form any change in respect of any information contained in his statement under this section within seven days after the change has taken place. The authority shall on receiving such notice and on being satisfied about its correctness make the change in the register of establishments in accordance with such notice and shall amend the registration certificate, if necessary.

(5) The employer shall, within ten days of his closing the establishment, notify to the prescribed authority in writing accordingly. The authority shall, on receiving the information and being satisfied about the correctness remove the name of such establishment from the register of establishments and cancel the registration certificate.